

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 719

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO CAMPAIGN FINANCE; AMENDING SECTION 67-6610D, IDAHO CODE, TO PROHIBIT OUT-OF-STATE CONTRIBUTIONS AND EXPENDITURES; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 67-6610D, Idaho Code, be, and the same is hereby amended to read as follows:

67-6610D. FOREIGN CONTRIBUTIONS, FOREIGN INDEPENDENT EXPENDITURES, AND FOREIGN ELECTIONEERING COMMUNICATIONS PROHIBITED -- OUT-OF-STATE CONTRIBUTIONS AND INDEPENDENT EXPENDITURES PROHIBITED. (1) A foreign national shall not make a contribution, directly or indirectly, to any candidate, political committee, or measure or make electioneering communications or independent expenditures. An out-of-state person shall not make a contribution, directly or indirectly, to any candidate, political committee, or measure or make independent expenditures.

(2) As used in this section, "foreign national":

(a) "Foreign national" means:

~~(a) (i) An individual who is not a citizen of the United States and is not lawfully admitted for permanent residence;~~

~~(b) (ii) A government or subdivision of a foreign country;~~

~~(c) (iii) A foreign political party; or~~

~~(d) (iv) Any entity, such as a partnership, association, corporation, organization, union, or other combination of persons, that is organized under the laws of or has its principal place of business in a foreign country.~~

(b) "Legal resident of Idaho" means an individual who is a citizen of the United States and who has resided in Idaho for at least thirty (30) days.

(c) "Out-of-state person" means:

(i) An individual who is not a legal resident of Idaho; or

(ii) Any entity, such as a partnership, association, corporation, organization, union, or other combination of persons, that is organized under the laws of or has its principal place of business in another state and does not maintain a physical office in the state of Idaho.

(3) A violation of the provisions of this section shall be prosecuted and punished as provided in section 67-6625(2) through (5), Idaho Code. Provided, however, any person who knowingly and willfully violates the provisions of this section is guilty of a felony when:

(a) The aggregate amount of contributions, independent expenditures, or cost of electioneering communications made in violation of this sec-

1 tion exceeds one thousand dollars (\$1,000) in a consecutive twelve (12)
2 month period; or

3 (b) The person pleads guilty to or is found guilty of a knowing and will-
4 ful violation of the provisions of this section for a second time within
5 ten (10) years, notwithstanding the form of the judgment or withheld
6 judgment.

7 (4) If any provision of this section or its application to any person or
8 circumstance is held invalid, the remainder of the section or the applica-
9 tion of the provision to other persons or circumstances is not affected.

10 SECTION 2. An emergency existing therefor, which emergency is hereby
11 declared to exist, this act shall be in full force and effect on and after
12 July 1, 2026.